

26STCV12573 26STCV12573

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-01

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The Court has

reviewed the ex parte application filed by Plaintiff and finds the matter suitable for decision in chambers without argument. (Code Civ. Proc. § 166(a)(1).)

Plaintiff seeks an order directing the Clerk's Office to accept for filing, nunc pro tunc, five documents that Plaintiff submitted for filing on August 19, 2026 relating to a request for entry of default judgment. According to Plaintiff, the documents were rejected by the Clerk of the Court, because the rejection notice issued by the Clerk indicated the reason for rejection was a failure to make the documents text-searchable, but only one of the five documents suffered from that deficiency.

Plaintiff contends that this matter is appropriate for relief on an ex parte basis, because after the rejection of Plaintiff's documents, Defendants filed a motion to have their default set aside. The Court finds that this is an insufficient basis for relief. Plaintiff's request is based on an implicit premise that if the Court accepts Plaintiff's default judgment package, the Court will rule upon the request before hearing Defendants' motion for relief from default. However, when a defaulted defendant files a motion to set aside the default, this Court's normal practice is to reserve ruling on any requests for entry of default judgment until after the motion to set aside the default has been determined. Entering a default judgment before deciding on a pending motion to set aside the default virtually guarantees additional motion practice, adding to the congestion of the Court's calendar.

The application is DENIED.

Plaintiff may resubmit the default judgment documents at any time, but

the Court is not inclined to decide whether to enter default judgment before hearing Defendants' motion to set aside the default.